

## 25TRCV03930 25TRCV03930

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-24

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Case Number: 25TRCV03930 Hearing Date: June 24, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

LISA GONZALEZ

Plaintiffs,

Case No.:

25TRCV03930

vs.

[Tentative]

Granted

CATHOLIC

CHARITIES OF LOS ANGELES, INC., a California Nonprofit Corporation dba Saint Margaret Center; and DOES 1 through 30 inclusive,

Defendants.

Hearing

Date: June  
24, 2026

Moving Parties: Defendant Catholic Charities of Los  
Angeles

Responding Party: Plaintiff Lisa Gonzalez

HEARING: Motion to Strike

The Court considered the moving  
papers, opposition, and reply papers.

#### RULING

The Court grants the Motion to Strike without  
leave to amend.

#### BACKGROUND

On  
November 14, 2025, Plaintiff Lisa  
Gonzalez filed the Complaint against Defendant Catholic Charities of Los  
Angeles.

On January 20, 2026, Plaintiff filed  
the First Amended Complaint (FAC) against Defendant, alleging causes of action  
for religious discrimination, disability discrimination, retaliation,  
harassment, failure to prevent discrimination, wrongful constructive discharge,  
failure to pay wages, and whistleblower retaliation.

On March 25, 2026, Defendant filed  
the Second Amended Complaint (SAC) against Defendant alleging the same causes  
of action.

May 5, 2026, Defendant filed the  
Motion to Strike.

On May 13, 2026, Plaintiff filed the  
Opposition.

On June 8, 2026, Defendant filed the Reply.

## LEGAL STANDARD

### California law

authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see also City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc., § 436.)

## DISCUSSION

### Meet and Confer

#### Before filing a

motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the

amended pleading before filing a motion to strike the amended pleading.” (Code Civ. Proc., § 430.41, subd. (a).)

On April 17, 2026, Defendant sent a meet and confer email regarding the instant motion to strike. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

#### Punitive Damages

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that “[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civil Code § 3294 subd. (a).)

Under the statute, malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” and oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Code Civ. Proc. § 3294(c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, “[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences.... [Citation.]” (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

Defendant argues Plaintiff’s punitive damages allegations should be stricken because the SAC fails to plead facts sufficient to satisfy Civil Code section 3294. Defendant argues that to state a prima facie claim for punitive damages, a complaint must allege specific facts

demonstrating oppression, fraud, or malice as those terms are defined by statute, and that general assertions characterizing conduct as malicious or despicable are mere legal conclusions insufficient to support such a claim. Defendant contends Plaintiff's complaint repeats conclusory assertions that Defendant's conduct was undertaken with malice, fraud, or oppression and was despicable and carried out with willful and conscious disregard for Plaintiff's rights, without any specific factual allegations to support those characterizations. Defendant further argues Plaintiff's pleading relies almost entirely on statutory buzzwords rather than substantive factual allegations.

Defendant also argues Plaintiff's allegations of managerial ratification fall short of the heightened standard required to impose punitive damages on a corporate employer. Defendant notes that under Civil Code section 3294, subdivision (b), the requisite conduct or ratification must come from an officer, director, or managing agent, Defendant contends Plaintiff merely lists several employees by title and alleges they ratified the unlawful conduct, without pleading any specific facts showing that any of these individuals exercised the requisite substantial discretionary authority over corporate policy or possessed the advance knowledge or conscious disregard necessary to impose punitive liability on the corporate employer.

In opposition, Plaintiff argues the motion to strike punitive damages should be denied because the SAC alleges detailed factual allegations sufficient to support oppression, fraud, or malice under Civil Code section 3294. Plaintiff contends that at the pleading stage the Court must accept the allegations as true and construe them liberally in her favor, and that the SAC specifically alleges that Plaintiff repeatedly complained to supervisors, human resources, and regional management about discriminatory and retaliatory conduct, and that management failed to investigate, minimized her complaints, and allowed the misconduct to continue and escalate.

Plaintiff further argues the SAC sets forth concrete instances of intentional and escalating retaliatory conduct, including that supervisor Dulce Medina confiscated Plaintiff's work laptop and restricted her duties almost immediately after Plaintiff requested a religious accommodation, that supervisor Jonathan Said gave Plaintiff an ultimatum to accept reassignment or resign within twenty-four hours after she complained, that Defendants excluded Plaintiff from a major fundraiser under pretextual

circumstances while treating comparator employees differently, and that Defendants directed IT personnel to access Plaintiff's systems and disable her email access while she was on protected medical leave under the pretext of an urgent client matter, despite IT personnel acknowledging the request was unusual. Plaintiff contends these specific factual allegations, taken as true, plausibly support intentional misconduct and conscious disregard of her rights sufficient to sustain a punitive damages claim, and that Defendant mischaracterizes these detailed allegations as mere buzzwords.

On managing agent ratification, Plaintiff argues the SAC adequately identifies specific managerial employees by title, including the Area Manager and Manager of Homeless Services, Center Director, HR Manager, HR Director, and Regional Director, and alleges these individuals exercised substantial discretionary authority over employee supervision, discipline, work assignments, and accommodation requests. Plaintiff contends she is not required at the pleading stage to prove the precise contours of corporate policymaking authority, only to plausibly allege that these managers exercised substantial discretionary authority over significant aspects of Defendant's operations, and that the SAC's allegations that these managing agents were repeatedly informed of Plaintiff's complaints yet failed to intervene or investigate sufficiently plead ratification and conscious disregard under Civil Code section 3294.

Here, the SAC alleges that Defendant restricted Plaintiff's work duties, confiscated her work laptop, forced her to accept a reassignment, excluded her from a major fundraiser, accessed her work email, confiscated work material, and failed to investigate the harassing and retaliatory conduct. (SAC ¶¶ 18, 19, 24, 32, 40, 55-56.) While these allegations support a claim for religious discrimination, they do not show the requisite malice, oppression, or fraud required for an award of punitive damages. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 64 [finding that factual allegations supporting a claim for gender discrimination did not show that defendant acted with malice, oppression, or fraud].) Furthermore, as Plaintiff has now had three attempts to plead punitive damages and has been unable to do so, the Court finds that it is not reasonably possible that Plaintiff will be able to cure the defects found in the SAC. (See *Inns-by-the-Sea v. California Mutual Ins. Co.* (2021) 71 Cal.App.5th 688, 712.)

Therefore, the Court

grants the Motion to Strike without leave to amend.